

Islamic Concept of Marriage

What is Marriage?

According to Islamic teachings when a man and a woman enter into the bond of marriage through NIKAH when they make an agreement to live for the whole life together. It is essential that every new marriage is announced publically and in the presence of witnesses so that it is known to everyone that a new couple has been formed. The main objective of this relationship is to bless both husband and wife with the wealth of love and peace through each other. Both of them are apparel of each other. Both have equivalent rights and duties towards each other except at one stage when man as a husband has an edge upon woman for being the head of family. On the other side he is more responsible than woman as he has to afford all the expenses of his wife and children.

Purpose of Marriage:

A man and a woman get their sexual relationship legalized through marriage as any such contact outside the bond of marriage is disallowed by Islam.

وَلَا تَقْرَبُوا الزَّانِيَ إِنَّهُ كَانَ فَحِشَةً وَسَاءَ سَبِيلًا

The Quran Says: “You shall not draw near to adultery, for it is foul and its way is evil.” (17:32)

Essential Conditions of a Marriage:

1. Mutual Consent of man and woman.
2. Maher (dower) must be paid to the woman.
3. The relationship must be permanent.
4. It must be announced publically.

وَالْمُحْصَنَاتُ مِنَ النِّسَاءِ إِلَّا مَا مَلَكَتْ أَيْمَانُكُمْ كَتَبَ اللَّهُ عَلَيْكُمْ ۖ وَأَجَلَ لَكُمْ مَا وَرَاءَ ذَلِكَ ۖ أَنْ تَبْتَغُوا بِأَمْوَالِكُمْ مُحْصِنِينَ غَيْرَ مُسْلِفِينَ ۖ فَمَا اسْتَمْتَعْتُمْ بِهِ مِنْهُنَّ فَآتُوهُنَّ أُجُورَهُنَّ فَرِيضَةً ۖ وَلَا جُنَاحَ عَلَيْكُمْ فِيمَا تَرَضَيْتُمْ بِهِ مِنْ بَعْدِ الْفَرِيضَةِ ۚ إِنَّ اللَّهَ كَانَ عَلِيمًا حَكِيمًا

“(Forbidden to you also) are married women, except those whom you own as slave. Such is the decree of Allah. All women other than these are lawful to you, provided you seek them with wealth in modest conduct, not in fornication. Give them dowry for the enjoyment you have had of them as a duty; but it shall be no offence for you to make any other agreement among yourselves after you have fulfilled your duty. Allah is knowing, Wise.”(Al-Nisa-4:24)

مُحْصَنَاتٍ غَيْرِ مُسَفِّحَاتٍ وَلَا مُتَّخِذَاتِ أَخْدَانٍ ۚ

“Marry them, so that they should be honorable and chaste.” (Al-Nisa-4:25)

Relationships prohibited for Nikah:

1. Lineage:

2. Fosterage:

3. Marriage:

وَلَا تَنْكِحُوا مَا نَكَحَ آبَاؤُكُمْ مِنَ النِّسَاءِ إِلَّا مَا قَدْ سَلَفَ ۚ إِنَّهُ كَانَ فَحِشَةً وَمَقْتًا وَسَاءَ سَبِيلًا
حُرِّمَتْ عَلَيْكُمْ أُمَّهَاتُكُمْ وَبَنَاتُكُمْ وَأَخَوَاتُكُمْ وَعَمَّاتُكُمْ وَخَالَاتُكُمْ وَبَنَاتُ الْأَخِ وَبَنَاتُ الْأُخْتِ
وَأُمَّهَاتُكُمُ اللَّاتِي أَرْضَعْنَكُمْ وَأَخَوَاتُكُم مِّنَ الرَّضْعَةِ وَأُمَّهُتِ نِسَائِكُمْ وَرَبِّبُكُمُ اللَّاتِي فِي
حُجُورِكُمْ مِّنْ نِّسَائِكُمُ اللَّاتِي دَخَلْتُمْ بِهِنَّ فَإِنْ لَّمْ تَكُونُوا دَخَلْتُمْ بِهِنَّ فَلَا جُنَاحَ عَلَيْكُمْ وَحَلَائِلُ
أَبْنَائِكُمُ الَّذِينَ مِنْ أَصْلَابِكُمْ وَأَنْ تَجْمَعُوا بَيْنَ الْأُخْتَيْنِ إِلَّا مَا قَدْ سَلَفَ ۚ إِنَّ اللَّهَ كَانَ غَفُورًا
رَّحِيمًا

And marry not women whom your fathers married – except what has been done in the past: it was shameful and odious – an abominable practice indeed. Prohibited to you [for marriage] are your mothers, your daughters, your sisters, your maternal and paternal aunts, the daughters of your brothers and sisters; your mothers who have suckled you and your sisters through fosterage. [Similarly], the mothers of your wives, your step-daughters raised under you born of your wives with whom you have lain – no offence if you have not lain with their mothers, and the wives of your real sons, and two sisters in wedlock at the same time, except for what has already happened. God indeed is Oft-Forgiving, Most Merciful. Also [prohibited are] women already married, except those whom your right hands possess; this is a written obligation upon you from God. (4:22-24)

A man is disallowed to marry his mother, daughter, sister, maternal and paternal aunts, nieces, foster mothers and daughters-in-law. Besides this a man is not allowed to marry-two sisters or an aunt and her niece (paternal and maternal both) at the same time. A Muslim man cannot marry a pagan woman but he may marry a Christian or a Jew woman if she is chaste.

Marriage with People of the Book:

الْيَوْمَ أُحِلَّ لَكُمُ الطَّيِّبَاتُ ۚ وَطَعَامُ الَّذِينَ أُوتُوا الْكِتَابَ حِلٌّ لَّكُمْ وَطَعَامُكُمْ حِلٌّ لَّهُمْ ۚ
وَالْمُحْصَنَاتُ مِنَ الْمُؤْمِنَاتِ وَالْمُحْصَنَاتُ مِنَ الَّذِينَ أُوتُوا الْكِتَابَ مِن قَبْلِكُمْ إِذَا آتَيْتُمُوهُنَّ
أُجُورَهُنَّ مُحْصِنِينَ غَيْرِ مُسَفِّحِينَ وَلَا مُتَّخِذِي أَخْدَانٍ ۚ وَمَنْ يَكْفُرْ بِالْإِيمَانِ فَقَدْ حَبِطَ عَمَلُهُ
وَهُوَ فِي الْآخِرَةِ مِنَ الْخَاسِرِينَ

“(All) good things have this day been made lawful to you. The food of those to whom the Book was give is lawful to you and yours to them. Lawful to you are the free believing women and the free women from among those who were given the Book before you, provided that your

give them their dowries and live in honour with them, neither committing fornication nor taking them as mistresses.” (Al-Maida-5:5)

لَا هُنَّ حِلٌّ لَّهُمْ وَلَا هُمْ يَحِلُّونَ لَهُنَّۙ

“They (Muslim women) are not lawful to the infidels; nor are the infidels lawful to them’. (Al Mumtahana-60:10)

The Nature of Ideal relationship between a husband and wife:

هُنَّ لِبَاسٌ لَّكُمْ وَأَنْتُمْ لِبَاسٌ لَّهُنَّۙ

“They are apparel to you as you are apparel to them.” (2:187)

هُوَ الَّذِي خَلَقَكُمْ مِنْ نَفْسٍ وَاحِدَةٍ وَجَعَلَ مِنْهَا زَوْجَهَا لِيَسْكُنَ إِلَيْهَاۖ فَلَمَّا تَغَشَّاهَا حَمَلَتْ حَمْلًا خَفِيفًا فَمَرَّتْ بِهِۦۖ فَلَمَّا أَثْقَلَتْ دَعَوَا اللَّهَ رَبَّهُمَا لَئِنْ ءَاتَيْنَا صَالِحًا لَّنُكَونَنَّ مِنَ الشَّاكِرِينَۙ

“It was He who created you (man and woman) from a single being. From that being He created his mate, so that he might find comfort in her. And when he had covered her, she conceived and for a time her burden was light. She carried it with ease, but when it grew heavy, they both cried to Allah, their Lord: „Grant us a goodly child and we will be truly thankful.” (Al-Araf 7:189)

وَمِنْ ءَايَاتِهِۦٓ أَنْ خَلَقَ لَكُمْ مِنْ أَنْفُسِكُمْ أَزْوَاجًا لَّتَسْكُنُوا إِلَيْهَا وَجَعَلَ بَيْنَكُمْ مَوَدَّةً وَرَحْمَةًۖ إِنَّ فِي ذَٰلِكَ لَآيَاتٍ لِّقَوْمٍ يَتَفَكَّرُونَۙ

“And of His Signs is that He gave you wives from among yourselves, that you might live in tranquility with them, and put love and kindness in your hearts. Surely there are signs in this for thinking people.” (Al-Rum 30:21)

وَلَهُنَّ مِثْلُ الَّذِي عَلَيْهِنَّ بِالْمَعْرُوفِ ۚ

“Women shall with justice have rights normally similar to those exercised against them.” (2:228)

Special duties of a man:

يَا أَيُّهَا الَّذِينَ ءَامَنُوا لَا يَحِلُّ لَكُمْ أَنْ تَرِثُوا النِّسَاءَ كَرِهًاۙ وَلَا تَعْضُلُوهُنَّ لِتَذْهَبُوا بِبَعْضِ مَآ ءَاتَيْتُمُوهُنَّ إِلَّا أَنْ يَأْتِيَنَّ بِفَحِشَةٍ مُّبِينَةٍۖ وَعَاشِرُوهُنَّ بِالْمَعْرُوفِۖ فَإِنْ كَرِهْتُمُوهُنَّ فَعَسَىٰ أَنْ تَكْرَهُوا شَيْئًا وَيَجْعَلَ اللَّهُ فِيهِ خَيْرًا كَثِيرًاۙ

“O believers, it is unlawful for you to inherit the women of your deceased kinsmen against their will, or to bar them from re-marriage, in order that you may force them to get a part of what you have given them, unless they be guilty of a proven crime (adultery). Treat them with kindness; for even if you do dislike them, it may well be that you may dislike a thing which Allah has meant for your own good.” (Al-Nisa-4:19)

النِّكَاحُ ۚ وَأَنْ تَغْفُوا أَقْرَبُ لِلتَّقْوَىٰ ۚ وَلَا تَنْسُوا الْفَضْلَ بَيْنَكُمْ ۚ إِنَّ اللَّهَ بِمَا تَعْمَلُونَ بَصِيرٌ

“It is more pious that he (man) should forego it (his rights). Do not forget to show kindness to each other. Allah observes your actions.” (Al-Baqara-2:237)

Special duties of a woman:

فَالصَّالِحَاتُ قَانِتَاتٌ ۖ حَافِظَاتٌ لِّلْغَيْبِ بِمَا حَفِظَ اللَّهُ ۚ

Good women are obedient. They guard the secrets of family as Allah guards the secrets of Human beings (Al-Nisa 4:34)

Who is the head of the family?

الرِّجَالُ قَوَّامُونَ عَلَى النِّسَاءِ بِمَا فَضَّلَ اللَّهُ بَعْضَهُمْ عَلَىٰ بَعْضٍ ۚ وَبِمَا أَنْفَقُوا مِنْ أَمْوَالِهِمْ ۚ

“Men (as husbands) are Qawwam over women because Allah has made the one superior to the others (at times man and at times woman) and because (in this situation) they spend their wealth to maintain the family”. (Al-Nisa-4:34)

إِصْلَاحًا ۚ وَلَهُنَّ مِثْلُ الَّذِي عَلَيْهِنَّ بِالْمَعْرُوفِ ۚ وَلِلرِّجَالِ عَلَىٰهِنَّ دَرَجَةٌ ۚ

“Wives shall with justice have rights similar to those exercised against them; although husbands have an edge above them (as Qawam).” (Al-Baqara-2:228)

وَلَا تَتَمَنَّوْا مَا فَضَّلَ اللَّهُ بِهِ ۚ بَعْضَكُمْ عَلَىٰ بَعْضٍ ۚ لِلرِّجَالِ نَصِيبٌ مِّمَّا اكْتَسَبُوا ۚ وَلِلنِّسَاءِ نَصِيبٌ مِّمَّا اكْتَسَبْنَ ۚ وَسَأَلُوا اللَّهَ مِنْ فَضْلِهِ ۚ

“Do not covet the favours by which Allah has exalted some of you above others. For men is a portion of what they earn, and for women is a portion of what they earn. Ask Allah for his grace.” (Al-Nisa-4:32)

What is Dower?

Dower is, in fact the amount paid by a man with a promise of taking lifelong responsibilities to the woman entering into the bond of marriage with him as an acknowledgement of the

submission on her part in terms of body and will. Islam has determined this amount as a token that the woman may utilize it as and where she desires freely and conveniently.

The Quran directs that this amount should be determined keeping in view the social and financial conditions (Al-Nisa-4, 24-25). However, this amount should be handsome enough to grant her sense of security.

It can be decided mutually whether the amount of dower would be paid immediately at the time of marriage or a part of it would be paid afterwards on the demand of his wife. Later, the wife may surrender a part of the dower if she desires (Al-Baqara-2, 229-237).

1. Divorce: Husband will pay total amount of dower.
2. *Khula*: Depends on their mutual consent.
3. Divorce Before marriage: Half dower must be given.

Is a woman free to marry a man of her choice?

Quran declares marriage a free and solid contract between two wise persons having an insight into the matter. They have to live together and accept all responsibilities. Hence, they should be acknowledged free and independent in the accomplishment of this strong contract.

وَإِذَا طَلَّقْتُمُ النِّسَاءَ فَلَا تَعْضُلُوهُنَّ أَنْ يَنْكِحْنَ أَزْوَاجَهُنَّ إِذَا تَرَصُوا بَيْنَهُمْ بِالْمَعْرُوفِ ۚ ذَٰلِكَ يُوعَظُ بِهِ مَنْ كَانَ مِنْكُمْ يُؤْمِنُ بِاللَّهِ وَالْيَوْمِ الْآخِرِ ۚ ذَٰلِكُمْ أَزْكَىٰ لَكُمْ وَأَظْهَرُ ۚ وَاللَّهُ يَعْلَمُ وَأَنْتُمْ لَا تَعْلَمُونَ

“If a man has a divorced his wife and she has reached the end of her waiting period (three menstrual cycles) do not prevent her from remarrying if they (man and woman) have come to an honourable agreement. This is enjoined on every one of you who believes in Allah and the Last Day; it is more honourable for you and more chaste. Allah knows, but you do not.” (2:232).

وَالَّذِينَ يُتَوَفَّوْنَ مِنْكُمْ وَيَذَرُونَ أَزْوَاجًا يَتَرَبَّصْنَ بِأَنْفُسِهِنَّ أَرْبَعَةَ أَشْهُرٍ وَعَشْرًا ۖ فَإِذَا بَلَغْنَ أَجَلَهُنَّ فَلَا جُنَاحَ عَلَيْكُمْ فِيمَا فَعَلْنَ فِي أَنْفُسِهِنَّ بِالْمَعْرُوفِ ۚ وَاللَّهُ بِمَا تَعْمَلُونَ خَبِيرٌ

“And those of you who die and leave wives behind. Such women should keep in waiting for four months and ten days after their husband’s death. When they have reached the end of their waiting period, it shall be no offence for you to let them do whatever they choose for themselves, provided that it is lawful. Allah is cognizant of what you do”. (2:234)

فَإِنْ طَلَّقَهَا فَلَا تَحِلُّ لَهُ مِنْ بَعْدُ حَتَّىٰ تَنْكِحَ زَوْجًا غَيْرَهُ ۚ فَإِنْ طَلَّقَهَا فَلَا جُنَاحَ عَلَيْهِمَا أَنْ يَتَرَاجَعَا إِنْ ظَنَّا أَنْ يُقِيمَا حُدُودَ اللَّهِ ۚ وَتِلْكَ حُدُودُ اللَّهِ يُبَيِّنُهَا لِقَوْمٍ يَعْلَمُونَ

If a man divorces his wife (after the two divorces), he cannot remarry her until she has wedded another man and been divorced by him (the second husband); in which case it

shall be no offence for either of them (the first husband and the divorced woman) to return to the other (means remarry each other), if they think that they can keep within the limits set by Allah” (2:230)

“Abu Huraira narrates the Prophet’s saying that, the marriage of a widow should not be arranged without her consolation and an unmarried girl should also be asked for permission regarding her marriages”. The companions of the Prophet requested him for further clarification of the nature of the permission (For example if an unmarried girl cannot utter the word „yes” due to shyness). The Prophet told that her silence means that she has no objection”. (The Bukhari: kitabun Nikah)

“The woman, once married is more powerful than her „Wali” in the matter of her marriage and a virgin should also be sought permission (According to another narrative) the virgin’s father should seek her permission and her silence amounts to her permission”. (The Muslim: Kitab-ul Nikah)

“Ayesha narrates that a girl came to the Prophet and told that her father has made her marriage with his nephew so that the boy may be relieved of burden through this marriage. The Prophets granted her the right to retain or terminate the Nikah. The girl said that she accepts the decision of her father as she just wanted the women to realize that their father are not authorized to made their marriage at their own.” (Nisai, Ibn-Majah, Masnad Ahmed: Kitabul Nikah).

“A woman came to the Prophet and said that her father had made her marry the man she disliked. The Prophet told her father that he had no right to make her marriage. He allowed the girl to marry the man of her choice.” (Nasb-ul Raiah Kitab ul Nikah).

Polygamy

﴿هُوَ الَّذِي خَلَقَكُمْ مِنْ نَفْسٍ وَاحِدَةٍ وَجَعَلَ مِنْهَا زَوْجَهَا لِيَسْكُنَ إِلَيْهَا فَلَمَّا تَغَشَّاهَا حَمَلَتْ حَمْلًا خَفِيفًا فَمَرَّتْ بِهِ فَلَمَّا أَثْقَلَتْ دَعَوَا اللَّهَ رَبَّهُمَا لَئِنْ آتَيْنَا صَاحِبًا لَنَكُونَنَّ مِنَ الشَّاكِرِينَ﴾

“It was he who created you from single being. From that he created his mate, so that he might find comfort in her. And when he had covered her, she conceived, and for a time her burden was light. She cried it with ease, but when it grew heavy, they both cried to Allah, their Lord: „Grant us a goodly child and we will be truly thankful. (Al-Aaraf 7:189).

﴿وَإِنْ خِفْتُمْ أَلَّا تُقْسِطُوا فِي الْيَتَامَىٰ فَانكِحُوا مَا طَابَ لَكُمْ مِنَ النِّسَاءِ مَثْنَىٰ وَثُلَاتٍ وَرُبْعٍ فَإِنْ خِفْتُمْ أَلَّا تَعْدِلُوا فَوَاحِدَةً أَوْ مَا مَلَكَتْ أَيْمَانُكُمْ ۚ ذَٰلِكَ أَذْنَىٰ أَلَّا تَعُولُوا﴾

“(Believers) if you fear that you cannot treat orphans (as a result of Battle of Uhad) with fairness, then you may marry such women (these widowers) as seem good to you: two, three or four of them. But if you fear that you cannot do justice, marry only one or those you possess.” (Al-Nisa-4:3).

وَلَنْ تَسْتَطِيعُوا أَنْ تَعْدِلُوا بَيْنَ النِّسَاءِ وَلَوْ حَرَصْتُمْ ۖ فَلَا تَمِيلُوا كُلَّ الْمَيْلِ فَتَذَرُوهَا
كَالْمُعَلَّقَةِ ۚ وَإِنْ تُصْلِحُوا وَتَتَّقُوا فَإِنَّ اللَّهَ كَانَ غَفُورًا رَحِيمًا

“In no way you can treat your wives in a just manner, even though you may wish to do that. Do not set yourself altogether against any of them, leaving her, as it were, in suspense. If you do what is right and guard yourself against evil, (you will find) Allah is Forgiving and Merciful”. (Al-Nisa- 4:129).